

26PSCV02212 26PSCV02212

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-09

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Case Number: 26PSCV02212 Hearing Date: September 9, 2026 Dept: 6

CASE

NAME: Melissa

Davis v. Pomona Valley Hospital Medical Center, et al.

1. Defendant

Pomona Valley Hospital Medical Center's Demurrer to the Complaint; and

2. Motion to

Strike Complaint.

TENTATIVE

RULING

The Court SUSTAINS Defendant Pomona Valley Hospital Medical Center's Demurrer. The Court will hear from Plaintiff whether there are facts that can be alleged to cure these defects.

The Court GRANTS Defendant Pomona Valley Hospital Medical Center's Motion to Strike in its entirety. That portion of Paragraph 22 of First Cause of Action – “as well as attorneys’ fees” and that portion of Paragraph 3 of Prayer for Relief – “Attorney’s fees and” are hereby stricken. The Court will hear from Plaintiff whether there are facts that can be alleged to cure these defects.

Defendant PVHMC is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a case for medical malpractice. On June 24, 2026, Plaintiff Melissa Davis ("Plaintiff" or "Davis") filed this action against Pomona Valley Hospital Medical Center ("PVHMC"), and various physician defendants asserting a single cause of action for medical malpractice.

Plaintiff alleges that on January 8, 2026, she presented to Pomona Valley Hospital Medical Center's emergency department with severe abdominal pain, was diagnosed with an intra-abdominal abscess, and admitted to the hospital for two days. Plaintiff alleges that she was initially told that surgery would be delayed because the surgeon was out of town, but discharged on January 10 as her condition was "stable" and not life-threatening. On January 21, during outpatient surgery to address the abscess, Plaintiff's OBGYN informed her that the abscess was life-threatening, as it could have ruptured and caused irreparable harm. Plaintiff alleges that defendants breached the standard of care by failing to treat her in a timely manner.

On August 10, 2026, Defendant PVHMC filed the instant Demurrer ("Demurrer") with Motion to Strike ("MTS"). No opposition has been filed. On September 1, 2026, PVHMC filed a Notice of No Opposition to the Demurrer and MTS.

LEGAL

STANDARD – Demurrer

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in the complaint. (Code Civ. Proc., §430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (Code Civ. Proc., §430.10, subd. (e); *McKenney*, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc., §§430.30, 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) For the purpose of testing the sufficiency of the cause of action, the Court admits "all material facts properly pleaded" and

“matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law.

(Blank, 39 Cal.3d at 318.)

It gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (Ibid.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v.

Sansoucie (1972) 28 Cal. App. 3d 714, 721.)

The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell

(1987) 189 Cal.App.3d 91, 94.) “If

facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (Holland

v. Morse Diesel Internat., Inc. (2001) 86 Cal.App.4th 1443, 1447.)

Special demurrers can be used to attack the pleadings on grounds that the pleading is uncertain, ambiguous, and unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty will be

sustained only where the pleading is so unclear that the responding party cannot reasonably determine what issues to admit or deny or what counts and claims are directed toward the responding party. (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.) A special demurrer may also be used as a means to challenge the complainant’s legal capacity to sue. (Code Civ. Proc., §430.10, subd. (b).)

Moreover, Code of Civil Procedure section 430.41 requires that

“[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

(Code Civ. Proc., §430.41, subd. (a).)

The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §430.41, subd. (a)(2).)

Thereafter, the demurring party shall file and serve a declaration stating either (1) the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised in the demurrer or (2) the party that filed the pleading failed to respond to the meet and confer request or otherwise failed to meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).)

When a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 ("Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.").)

DISCUSSION –

Demurrer

Meet and Confer

Per Code of Civil Procedure section 430.41, subdivision (a)(1), Defendant PVHMC was required to meet and confer with Plaintiff before bringing this demurrer. Defense counsel declares that on August 3, 2026, he sent a meet and confer letter to Plaintiff's counsel identifying deficiencies in the Complaint and informing that Defendant intended to move to strike Plaintiff's request for attorney's fees. (Declaration of Allen L. Williams II, ¶3, Ex. A.) Thereafter, counsel met and conferred by telephone, but did not reach an agreement. (Id. at ¶4.) The Court finds that PVHMC has satisfied the meet and confer requirement.

Cause of Action – Medical Malpractice

Defendant PVHMC demurs to the medical malpractice cause of action on the following grounds: (1) the Complaint fails to state facts sufficient to constitute a cause of action and (2) is uncertain, ambiguous, and unintelligible.

Plaintiff alleges that she presented to PVHMC's emergency department on January 8, 2026, with extreme abdominal pain. An ultrasound and CT scan allegedly disclosed an intra-abdominal abscess, and Plaintiff was admitted to the hospital that

day. Plaintiff alleges that PVHMC informed her that surgery was required but would be delayed because the necessary surgeon was out of town. According to the Complaint, Plaintiff remained hospitalized for two days and received pain management but no surgical intervention. She was discharged on January 10, 2026, after PVHMC evaluated her test results and determined that she was stable and that her condition was not life threatening. Plaintiff's obstetrician-gynecologist ("OBGYN") recommended surgery as soon as possible on January 15, 2026, and performed outpatient surgery to remove the abscess on January 21, 2026.

Plaintiff alleges that the condition was life threatening because the abscess could have ruptured and caused irreparable harm. She further alleges that Defendants' failure to provide timely treatment subjected her to additional risky medical procedures, prolonged treatment and care, rehabilitation, costs, stress, anxiety, pain, and emotional distress. The medical malpractice cause of action alleges that Defendant owed a duty to exercise the degree of skill and care of a reasonably careful healthcare provider in similar circumstances and it breached that duty by failing to properly treat her in a timely manner and failing to provide adequate staff and resources to treat patients. As a result of Defendant's errors and omissions, Plaintiff suffered physical and psychological harm and seeks damages for pain and suffering, medical expenses, economic losses, and attorney fees.

First, the Court addresses PVHMC's uncertainty argument. PVHMC claims that the Complaint is uncertain, ambiguous, and unintelligible because it fails to clearly identify the injury allegedly caused by Defendant's conduct, fails to adequately plead the factual basis of Plaintiff's causation theory, and contains duplicative paragraph numbering and conclusory allegations that prevent Defendant from reasonably determining the factual basis of the claim and preparing a responsive pleading.

The Court finds that the Complaint identifies the treatment alleged to have been delayed, the relevant dates, the asserted misconduct, and the categories of resulting harm. These allegations are sufficiently intelligible to permit PVHMC to admit, deny, or otherwise respond. Duplicate numbering does not render the pleading incomprehensible. The first cause of action expressly incorporates all preceding allegations, and its substantive allegations can be distinguished from the general allegations by their location and heading. Any remaining ambiguity concerning the extent of Plaintiff's injuries or the details of her causation theory may be addressed

through discovery.

Second, the Court addresses PVHMC's argument that the Complaint fails to state facts sufficient to constitute a cause of action against Defendant because Plaintiff fails to allege facts demonstrating that any act or omission by Defendant proximately caused Plaintiff to suffer an actual, compensable injury.

"The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the professional commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (Johnson v. Superior Court (2006) 143 Cal.App.4th 297, 305.)

PVHMC argues that Plaintiff alleges only a potential injury—namely, that the abscess could have ruptured—and does not allege that the abscess actually ruptured, her condition deteriorated, emergency treatment became necessary, or she suffered a complication before surgery. The Court agrees. The Complaint does not set forth facts showing an actual, appreciable injury proximately caused by PVHMC's alleged breach; potential or hypothetical harm is insufficient. Although the Complaint lists "additional risky medical procedures, prolonged medical treatment, rehabilitation, care, cost, stress, anxiety, pain and emotional distress," it does not identify what additional procedures occurred, what treatment was prolonged, or facts linking such damages to PVHMC's alleged delay.

The Court finds that these allegations are conclusory regarding the elements of injury and causation; therefore, the Complaint fail to state facts sufficient to constitute a cause of action for medical malpractice.

Further, the Court construes Plaintiff's lack of opposition as a concession that PVHMC's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court SUSTAINS the demurrer to the First Cause of Action. The Court will hear from Plaintiff whether there are facts that can be alleged to cure these defects.

LEGAL

STANDARD – Motion to Strike

According to Code of Civil Procedure section 436:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strikeout any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., §437, subd. (a).) According to Code of Civil Procedure section 431.10, subdivision (b)(3), an immaterial allegation in a pleading includes “[a] demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.”

Furthermore, section 435.5 requires that “[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc. § 435.5, subd. (a).)

When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 (“Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been

given.".)

DISCUSSION – Motion to Strike

Meet and Confer

As discussed in the previous section, Defendant PVHMC has satisfied the meet and confer requirement as to the Demurrer and Motion to Strike.

Analysis

PVHMC moves

to strike the following parts of the Complaint on the grounds that Plaintiff's request for attorney's fees is improper and irrelevant because the Complaint alleges no contractual, statutory, or other legal basis authorizing the recovery of attorney's fees in this action.

(1) Paragraph

22 of First Cause of Action – request for attorney's fees;

(2) Paragraph

3 of Prayer for Relief – request for attorney's fees.

Although the

Demurrer is sustained in its entirety, the Motion to Strike is pertinent. The Court finds PVHMC's motion to strike persuasive. The Complaint fails to allege any contract between Plaintiff and PVHMC providing for the recovery of attorney's fees. The Complaint also fails to allege any statute providing for the recovery of attorney's fees.

Based on the foregoing, the Court GRANTS the motion to strike in its entirety. The Court will hear from Plaintiff whether there are facts that can be alleged to cure these defects.

CONCLUSION

The Court SUSTAINS Defendant PVHMC Valley Hospital Medical Center's Demurrer. The Court will hear from Plaintiff whether there are facts that can

be alleged to cure these defects.

The Court GRANTS Defendant Pomona Valley Hospital Medical Center's Motion to Strike in its entirety. That portion of Paragraph 22 of First Cause of Action – “as well as attorneys’ fees” and that portion of Paragraph 3 of Prayer for Relief – “Attorney’s fees and” are hereby stricken. The Court will hear from Plaintiff whether there are facts that can be alleged to cure these defects.

Defendant PVHMC is ordered to give notice of the Court's ruling within five calendar days of this order.